

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**-----X
MOSES TAYLOR,

Plaintiff

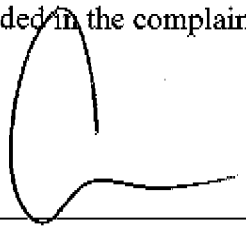
- against -

**THE CITY OF NEW YORK,
P.O. DANIEL MASLIVAR (SHIELD #23516)
Defendant.**Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS**

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 20, 2018.
MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

OFFICER DANIEL MASLIVAR (SHEILD #23516)

TRANSIT BUREAU DISTRICT 12 PRECINCT

460 Morris Park Avenue

Bronx, NY 10460

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****MOSES TAYLOR****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
P.O. DANIEL MASLIVAR (SHIELD #23516)****Defendant.**

Plaintiff MOSES TAYLOR, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter "NYPD") officers mentioned herein, including P.O. DANIEL MASLIVAR (hereinafter "MASLIVAR") were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff MOSES TAYLOR (hereinafter "TAYLOR") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 4:00pm on September 22, 2017, in and around the north east corner of E 149th Street and Third Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. On September 22, 2017, TAYLOR was exiting the 2 train at the E 149th Street station when he was approached by Amanda Olivero, a former girlfriend.
10. Ms. Olivero taunted TAYLOR with his cell phone in her hand, as, unbeknownst to him, Ms. Olivero had removed TAYLOR's cell phone from the back pack on his back.
11. Instead of confronting Ms. Olivero, TAYLOR got the attention of two transit police officers, including MASLIVAR.
12. TAYLOR requested the officers assist him in retrieving his phone from Ms. Olivero. Instead, the officers rebuffed TAYLOR, exclaiming that they did not want to be bothered with the situation.
13. As TAYLOR turned back to Ms. Olivero to retrieve the phone on his own, he was pushed down to the ground by the aforementioned officers, including MASLIVAR.
14. While on the ground, TAYLOR was electrocuted by MASLIVAR and the other officer's taser guns, suffering burns to his chest and right oblique.
15. TAYLOR was taken to the Transit Bureau District 12 precinct briefly and then transported to Bronx Lebanon Hospital to address the taser gun injuries.
16. After being treated by attending physicians, TAYLOR was transported to central booking, and eventually arraigned on charges of resisting arrest and attempted assault in the third degree.
17. Bail was set on TAYLOR's case. Unable to pay the bail, TAYLOR remained in the Anna M. Kross Correctional Center until bail was eventually paid, being released on September 26, 2017.

18. Proclaiming his innocence, TAYLOR went back and forth to court until March 6, 2018 when the criminal case was dismissed via an adjournment in contemplation with immediate sealing.
19. In addition to suffering physical injuries to his person and property, Plaintiff and his girlfriend and children suffered emotional distress.

FIRST CAUSE OF ACTION: FALSE ARREST

20. Paragraphs 8-19 are incorporated by reference as fully set forth herein
21. MASLIVAR arrested TAYLOR intentionally, and TAYLOR at all times was aware he was being arrested and did not consent to being arrested.
22. As a result of being arrested by MASLIVAR and the other transit officers, TAYLOR suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.
24. The officers who arrested the Plaintiff, as described in paragraphs 8-19, intended to confine him. TAYLOR was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.
26. In arresting TAYLOR as described in paragraphs 8-19, the arresting officers, including MASLIVAR, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
27. In arresting TAYLOR as described in paragraphs 8-19, the arresting officers, including MASLIVAR sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
28. As a result of defendants' abuse of process, TAYLOR sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.
30. In arresting TAYLOR as described in paragraphs 8-19, the arresting officers, including MASLIVAR acted with malice and without probable cause.
31. As a result of being maliciously prosecuted by the arresting officers, TAYLOR sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ASSAULT

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.

33. Immediately before MASLIVAR and the other arresting officers arrested

TAYLOR as described in paragraphs 8-19, the officers intentionally placed him in apprehension of imminent harmful or offensive contact without his consent.

SIXTH CAUSE OF ACTION: BATTERY

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.

35. The officers who arrested TAYLOR, as described in paragraphs 8-19, wrongfully touched, grabbed, handcuffed and seized him in an excessive manner, subjecting him to harmful and offensive bodily contact. The arresting officers, including MASLIVAR lacked legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to the illegal touching, nor was the touching privileged by law.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

36. Paragraphs 1-35 are incorporated by reference as though fully set forth herein.

37. Upon information and belief, the officers who illegally arrested and battered

TAYOR were at all times relevant duly appointed and acting officers of the City of New York Police Department.

38. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

39. TAYLOR is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action

pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

40. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

41. On or about September 22, 2017, as described in paragraphs 8-19, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized, assaulted, and battered Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The officers seized the person of the Plaintiffs during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

42. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:

- (a) Freedom from assault to his person,
- (b) Freedom from battery to his person,
- (c) Freedom from illegal search and seizure,
- (d) Freedom from false arrest,
- (e) Freedom from malicious prosecution,
- (f) Freedom from the use of excessive force during the arrest process.

43. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

44. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent physical and psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

45. Paragraphs 1-44 are incorporated by reference as though fully set forth herein.
46. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
47. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.
49. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
50. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was

further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

51. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
 - (b) Force cannot be used against an individual who does not physically resist arrest.
 - (c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.

52. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

53. Paragraphs 1-52 are incorporated by reference as though fully set forth herein.
54. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to

their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff MOSES TAYLOR demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

December 20, 2018

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
December 19, 2018


MOSES TAYLOR

Subscribed and sworn to before me, this 19th day of December 2018


Notary Public

ASHLEY CELLANA
Notary Public, State of New York
No. 01CE6327009
Qualified in Richmond County
Commission Expires June 29, 2019


**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

MOSES TAYLOR,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
P.O. DANIEL MASLIVAR (SHIELD #23516)**

Defendant.

SUMMONS & COMPLAINT

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CITY OF NEW YORK
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460 Morris Park Avenue
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